

26STCV19307 26STCV19307

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Case Number: 26STCV19307 Hearing Date: September 17, 2026 Dept: M

CASE NAME: PW001, et al.,

v. Coopersurgical Inc., et al.

CASE NO.: 26STCV19307

MOTION: Motion

to Seal

HEARING DATE: 9/17/2026

Legal

Standard

The sealing of trial court records is governed by California Rules of Court ("CRC") rules 2.550 and 2.551. (Mercury Interactive Corp. v. Klein (2007) 158 Cal.App.4th 60, 68.) Pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties—a prior court order must be obtained. (CRC, Rule 2.551(a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

To seal a record, the following requirements are imposed: (1) the party must file a motion or application for an order sealing the record, which must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing; (2) the party must serve a copy of the motion on all parties who have appeared in the case; and (3) the party requesting that a record be filed under seal must lodge it with the court when the motion or application is made unless the record has previously been lodged. (CRC, Rule 2.551(b).)

The Court must make the following express factual findings in order to seal records: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (CRC, Rule 2.550(d).) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those pages and documents or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal, and all other portions must be included in the public file. (CRC, rule 2.550(e).)

Once sealed, a record can only be unsealed by order of court. (CRC, Rule 2.551(h)(1).) So long as it remains under seal, all parties must refrain from filing anything not under seal that would disclose the sealed matter. (Id., Rule 2.551(c).) If a party files a new document referring to sealed matter, it must submit an unredacted version of the document under seal and a redacted one for the public record. (Id., Rule 2.551(b)(5).)

ANALYSIS

Plaintiffs PW011 and PW012 move to seal their Minor's Compromise Petition and related documents and information. Plaintiffs demonstrate an overriding interest which overcomes the right of public access to the record. The plaintiffs in this action are parents of eight children whose embryos developed in Defendants' embryo culture media in late 2023. (Wolf Decl., ¶ 3.) Plaintiffs' claims, including the claims of their minor children, were resolved as part of a global settlement. (Id.) The Minor's Compromise Petition and related documents are replete with identifying information of the petitioner and minor, health status of the minor, and the reproductive decisions of Plaintiffs. (Id., ¶ 4.) The parties' settlement agreements also contain a strict confidentiality provision in which the terms (including the

amount) of the settlement must not be disclosed. (Id., ¶ 5.) This overriding interest supports sealing the records. Absent sealing, there would be a substantial probability that the privacy interests stated will be prejudiced. Plaintiffs show that the proposed sealing is narrowly tailored and that no less restrictive means exist to achieve the overriding interest under the circumstances. The entirety of the petitions should be sealed, since all the information placed on the form petitions would be subject to the above privacy interests.

Accordingly, the motion is GRANTED.